BY ORDER OF THE SUPERINTENDENT
HQ UNITED STATES AIR FORCE ACADEMY

HQ UNITED STATES AIR FORCE ACADEMY INSTRUCTION 51-506

13 APRIL 2026

Law

DONOR REAL PROPERTY GIFTS TO THE USAFA PROCESS

COMPLIANCE WITH THIS PUBLICATION IS MANDATORY

ACCESSIBILITY: Publications and forms are available for downloading or ordering on the e-Publishing website at **www.e-Publishing.af.mil**

RELEASABILITY: There are no release restrictions on this publication

---

OPR: USAFA/CC

Certified by: USAFA/A4
(Colonel Alexander Liggett)

Supersedes: USAFAI51-506, 7 November 2024

Pages: 18

This instruction implements Air Force Policy Directive (AFPD) 51-5, *Administrative Law, Gifts, and Command Relationships.* This instruction implements United States Air Force Academy (USAFA) policy for the management of gifts of real property by Non-Federal Entities (NFEs) and use of gift funds and applies to all USAFA agencies. USAFA accepts gift funds under the authority of 10 USC 2601, *General Gift Funds*; Air Force Policy Directive, (AFPD) 51-5, *Administrative Law, Gifts and Command Relationships*, Air Force Instruction (AFI) 51-506, *Gifts to the Department of the Air Force from Domestic and Foreign Sources*, and USAFAI 51-601, *USAF Academy Management and Use of Gift Funds.* This instruction does not authorize the solicitation of gifts by Air Force (AF) personnel. Solicitation of gifts to the Air Force is prohibited by the DoD Financial Management Regulation Volume 12 Chapter 30 paragraph 300502.. This instruction applies to all United States Air Force Academy (USAFA) personnel. This publication does not apply to Air Force Reserve Command (AFRC) units or the Air National Guard (ANG). This publication does not apply to the United States Space Force. Refer recommended changes and conflicts between this and other publications to the Office of Primary Responsibility (OPR) using Department of the Air Force (DAF)Form 847, *Recommendation for Change of Product.* This publication may not be supplemented at any level. The authorities to waive requirements in this publication are identified with a Tier 3 (T-3) number following the compliance statement. See DAFMAN 90-161, *Publishing Processes and Procedures,* for a description of the authorities associated with the Tier numbers. Submit requests for waivers through the chain of command to the appropriate Tier waiver approval authority. The waiver authority for non-tiered requirements in this publication is the HQ USAFA/CC. Ensure all records generated as a result of processes

prescribed in this publication adhere to AFI 33-322, *Records Management and Information Governance Program*, and are disposed in accordance with the Air Force Records Disposition Schedule, which is located in the Air Force Records Information Management System. Compliance with the attachments in this publication is mandatory.

SUMMARY OF CHANGES

Major changes include changing office symbols to align with the USAFA restructuring, incorporation of lower-level information extracted from rescinded guidance/publications and leveling authorities up to or down to the appropriate levels.

Chapter 1—OVERVIEW **4**

1.1. Applicability. 4

1.2. Gift Acceptance Authority. 4

1.3. Obligation Authority. 4

1.4. Real Property Gifts to the USAFA Conditioned upon Naming Rights under 10 U.S.C.§ 2601(e) 4

Chapter 2—ROLES AND RESPONSIBILITIES **5**

2.1. Roles and Responsibilities Related to Real Property Gifts to the USAFA. 5

2.2. USAFA Headquarters A-Staff along with relevant 10th Air Base Wing (10 ABW) functions (Security Forces, Civil Engineering, etc. 5

2.3. USAFA Headquarters Staff Mission Unit (MU). 7

2.4. 10th Air Base Wing. 7

Chapter 3—DONOR REAL PROPERTY GIFT PROCESS **8**

3.1. Real Property Gift Process. 8

3.2. USAFA Staff Review. 8

3.3. Memorial Board Review. 8

3.4. Work Request and Environmental Impact Analysis. 8

3.5. National Historic Preservation Act (NHPA) Section 106 Consultation. 9

3.6. Air Force Civil Engineer Center (AFCEC)/Secretary of the Air Force (SAF) Gift Acceptance Process. 9

3.7. Donor Funded Real Property Gift-In-Kind Design Process. 9

3.8. Donor Cash That Fund Gifts of Real Property. 9

Chapter 4—DONOR FUNDED REAL PROPERTY CONSTRUCTION PROCESS **10**

4.1. 10ABW Pre-Construction Requirements. 10

4.2. Construction Progress, Reviews and Modifications. 10

Table 4.1. Weekly Meeting Topics. 10
4.3. Project Completion and Punch Lists. 11
4.4. Project As-Builts and O&M Manuals. 11
4.5. Project Turnover and Acceptance. 11
4.6. Warranty Work. 11

Chapter 5—REAL PROPERTY GIFTS TO THE USAFA CONDITIONED UPON NAMING RIGHTS UNDER 10 U.S.C. § 2601(E) 12

5.1. A provision in the General Gift Statute. 12
5.2. SAF/IE may accept a real property gift for the benefit of USAFA subject to the following conditions: 12

Attachment 1—GLOSSARY OF REFERENCES AND SUPPORTING INFORMATION 16

Attachment 2—DONOR REAL PROPERTY FLOW CHART 18

Chapter 1

OVERVIEW

1.1. Applicability. The requirements outlined in this USAFAI apply to all real property gifts either cash or Real Property to the USAFA, with or without being made conditional by the donor upon the granting of naming rights, pursuant to 10 U.S.C. § 2601.

1.2. Gift Acceptance Authority. Gifts to the Air Force. AFPD 51-5, *Administrative Law, Gifts and Command Relationships*, and AFI 51-506, *Gifts to the Department of the Air Force from Domestic and Foreign Sources*, establish procedures for receiving, accepting, and processing gifts offered to the AF and USAFA.

1.3. Obligation Authority. 10 USC 2601 authorizes the Secretary of the Air Force to accept, hold, administer, and spend any gift, devise, or bequest of real property made on the condition that the gift be used for the benefit, or in connection with, the establishment, operation or maintenance, of any organization within the AF. This authority has been implemented by the referenced AF instructions along with USAFAI 51-601, *USAF Academy Management and Use of Gift Funds*. This obligation authority extends to the Federal fiscal and contract law authorities necessary to obligate the funds as gift funds. The obligation of Gift Funds (gifts of real property, gifts of cash for real property) accepted by the USAFA or other proper authority for the use and benefit of the USAFA for the purpose of real property is set forth in this instruction.

1.4. Real Property Gifts to the USAFA Conditioned upon Naming Rights under 10 U.S.C.§ 2601(e) . A provision in the General Gift Statute allows the Secretary of the Air Force to accept gifts consisting of the provision, acquisition, enhancement or construction of real property from outside donors, even though the donor specifies (as a condition placed on the gift) that the real property bears a specific name (honoree) henceforth. The Secretary of the Air Force has delegated this authority to the SAF/IE, the Principal Deputy SAF/IE, via AFPD 51-5, paragraph 3.1.2.2. Neither delegee may further delegate this authority. Acceptance of a real property gift to the USAFA conditioned upon naming rights will follow the procedures laid out in AFI 51-506, Chapter 6. Chapter 5 of this instruction governs these gifts to the USAFA.

Chapter 2

ROLES AND RESPONSIBILITIES

2.1. Roles and Responsibilities Related to Real Property Gifts to the USAFA.

2.1.1. **United States Air Force Academy Superintendent (HQ USAFA/CC).** The Superintendent may accept or reject the following, provided the acceptance and annual maintenance expenses are not in excess of five percent of the total gift value:

2.1.1.1. A gift of real property having a value of $100,000 or less.

2.1.2. A gift of real property for the support and benefit of the USAFA Athletic Program having a value of $250,000 or less.

2.1.3. This authority does not apply to gifts of real property made conditional upon naming rights.

2.1.4. For real property gifts above $100,000 and Athletic Program real property gifts above $250,000 the USAFA Superintendent signs the cover letter for the real property gift offer package going to higher headquarters.

2.2. USAFA Headquarters A-Staff along with relevant 10th Air Base Wing (10 ABW) functions (Security Forces, Civil Engineering, etc.) perform a review of the real property gift proposal in sufficient detail to make a recommendation for accepting the gift proposal or not. Documentation includes gift source, project description and scope, description of naming opportunities, site plan, project need date, timing of gift, and cost estimate. The Mission Unit (MU) or donor proponent works with USAFA/A4 to prepare an AF Form 332, *Base Civil Engineer Work Request*, and DAF Form 813, *Request for Environmental Impact Analysis Process (EIAP)*, documentation.

2.2.1. Strategic Communications Division (HQ USAFA/CM). USAFAI 36-3102, *USAF Academy Gifts and Memorial Boards*. USAFA CM manages the Academy Memorial Board process. Real property gifts over $10,000 and those with naming and/or donor recognition will be presented to the memorial board for review and recommendation for approval to the Superintendent prior to official acceptance of the gift.

2.2.2. USAFA Requirements Division (HQ USAFA A5). Is responsible for:

2.2.2.1. Coordinating FF&E estimates through the USAFA Validation process.

2.2.2.2. Managing the requirement generation and validation processes in major USAFA materiel (acquisition and procurement) and non-materiel solutions/initiatives.

2.2.2.3. Providing necessary project and change management support.

2.2.2.4. Ensuring initiatives are fully vetted across the USAFA staff for funding.

2.2.2.5. Manpower and policy alignment through working groups and tailored engagement.

2.2.2.6. Ensuring sufficient documentation is provided to evaluate potential operational/mission impacts/long term interests of the proposed acquisition/investment.

2.2.2.7. Facilitating integration and alignment of processes across all MUs.

2.2.2.8. Assisting with real property gift proposal review and development of a recommendation for accepting a gift proposal or not accepting.

2.2.2.9. Providing formal coordination on real property gift proposals.

2.2.2.10. Coordinate on Future Sustainment estimates through the USAFA Validation process.

2.2.3. USAFA Financial Management Division (HQ USAFA/FM). Is responsible for:

2.2.3.1. Managing USAFA's POM resource programming process.

2.2.3.2. Providing formal coordination on real property gift proposal cost estimates, to include annual sustainment and maintenance costs, and ensuring those investment costs are programmed.

2.2.3.3. Managing the real property gift acceptance process.

2.2.3.4. Receiving donor's gift offers and working with HQ USAFA/A4 to gather all the mandatory gift acceptance documents to be considered.

2.2.3.5. Drafting the HQ USAFA/CC cover letter for the gift acceptance package going to higher headquarters

2.2.3.6. Preparing the acceptance package.

2.2.3.7. Coordinating the acceptance package through applicable USAFA A-Staff, Headquarters Staff, and 10th Air Base Wing agencies.

2.2.3.8. Sealing the completed gift acceptance package for gifts outside the HQ USAFA/CC acceptance authority and sending the package to the Air Force Civil Engineer Center (AFCEC) for further review and eventual acceptance by SAF/IE.

2.2.4. USAFA Logistics, Engineering, and Force Protection Division (HQ USAFA/A4). Leads an initial USAFA Headquarters cross functional review of the project with the supported MU, HQ USAFA/FM, and HQ USAFA/JA. Other headquarter functions may be brought into the review process when required to include HQ USAFA/FM; HQ USAFA/A1; HQ USAFA/A6; and HQ USAFA/A5. HQ USAFA/A4 is responsible for:

2.2.4.1. Assisting the proponent in submitting AF Form 332 work request to the 10th Civil Engineer Squadron (10 CES) Customer Service for planning and programming and the AF Form 813.

2.2.4.2. Monitoring proposal design progress.

2.2.4.3. Preparing programming documents for review/signatures (HQ USAFA/A4 is a signatory on the DD Form 1391, *FY_ Military Construction Project Data*).

2.2.4.4. Tracking EIAP progress.

2.2.4.5. Developing sustainment cost estimate for the proposed project.

2.2.4.6. Providing HQ USAFA/FM with DD Form 1391, sustainment cost estimate, EIAP results, and other information required for the gift acceptance package.

2.2.5. HQ USAFA/JA For gifts within the acceptance authority of the HQ USAFA/CC, HQ USAFA/JA is responsible for:

2.2.5.1. Reviewing the legality of the initial proposal.

2.2.5.2. Providing legal advice on the offer of gift and any risks associated with acceptance.

2.3. USAFA Headquarters Staff Mission Unit (MU). As the donor proponent, is responsible for:

2.3.1. Providing the real property gift proposal in sufficient detail to be reviewed by USAFA A-Staff and relevant 10 ABW functions (Security Forces, Civil Engineering, etc.). Documentation should include, at a minimum: gift source, project description and scope, description of naming and recognition opportunities, site plan, project need date, timing of gift, and cost estimate.

2.3.2. Working with 10 CES to prepare an AF Form 332, *Base Civil Engineer Work Request*, and DAF Form 813 documentation.

2.4. 10th Air Base Wing.

2.4.1. The 10 ABW Commander (10 ABW/CC). Chairs the Installation Facility Board (IFB). The IFB approves the siting of the real property gift. The Base Civil Engineer and the first cross functional manager above the Civil Engineer Squadron shall sign the DD 1391, *Certificate of Compliance (CoC)*, document for the real property gift (USAFA/A4 is a signatory on the DD Form 1391).

2.4.2. The 10 ABW Deputy Commander (10 ABW/CD). Chairs the Facility Board Working Group (FBWG), reviews real property gift siting and makes recommendations to the IFB whether to approve or disapprove.

2.4.3. The 10 ABW/CC through the 10 CES, is responsible for:

2.4.3.1. Processing the real property gift proposal AF Form 332 Work Request through a cross functional review in the Work Request Review Panel (WRRP).

2.4.3.2. Ensuring the real property gift proposal work request meets the WRRP, where a cross functional team comprised of A6, 10 ABW technical experts, USAFA/SE, and other 10 CES components.

2.4.3.3. Ensuring all aspects of the work being requested are considered.

2.4.3.4. Ensuring once the WRRP is complete, the request goes to the Work Request Review Board (WRRB) for real property requirement determination, then to the FBWG for review.

2.4.3.5. If siting is required, ensuring the project is referred to the next IFB for siting approval consideration.

Chapter 3

DONOR REAL PROPERTY GIFT PROCESS

3.1. Real Property Gift Process.

3.1.1. **Proponent/Donor Proposal.**

3.1.1.1. MUs. The process begins with an MU submitting a gift opportunity form through HQ USAFA/A4.

3.1.2. Non-USAFA Donors. For prospective donors outside USAFA, the process begins with a written proposal to HQ USAFA/A4, and will include, at a minimum, a description of the project, the scope of the project, prospective site plan, gift source, need date, timing of gift, and estimated cost. Proposals are submitted to HQ USAFA/FM via workflow email.

3.2. USAFA Staff Review. HQ USAFA/A4 is the lead on the initial review of all donor funded real property projects. Other participants include the A-staff, HQ USAFA/CM, HQ USAFA/FM, HQ USAFA/FM, HQ USAFA/JA, and 10 ABW functionals, as needed. The reviewers will look at how the proposal fits into USAFA priorities and will consider issues including, but not limited to, any legal issues with accepting the gift, whether ongoing projects will be affected by proceeding with the proposal, and whether the project will require additional support requirements over and above what is currently identified.

3.3. Memorial Board Review. Donor real property gift proposal work requests are submitted to 10 CES for review prior to the proposal being presented to the Memorial Board. The MU or donor proponent sends the proposal to the Secretary of the Gifts and Memorial Board for consideration at the next scheduled Memorial Board meeting. All real property gifts over $10,000 require a Memorial Board review. Once the Memorial Board approves the real property gift proposal, the project's AF Form 332 work request must go through the Environmental Impact Analysis, and 10 ABW Facility Project Approval processes.

3.4. Work Request and Environmental Impact Analysis. Through the HQ USAFA/A4, the proponent forwards project information on an AF Form 332 to 10 CES. At the same time HQ USAFA/A4 submits a DAF Form 813, on the Department of Air Force Form 813 tool (**https://intelshare.interlink.gov/sites/USAFNEPA/Module**), using the project information provided by the proponent. Once the environmental planning section receives the EIAP request the review and evaluation process begins to analyze the impacts of the proposed action, and alternatives. Environmental impact analysis continues until the design is complete or will not significantly change for the remainder of the review process. At this point environmental planning should be able to determine if the action qualifies for a Categorical Exclusion (CATEX) or requires an Environmental Assessment (EA) or Environmental Impact Statement (EIS).

3.5. National Historic Preservation Act (NHPA) Section 106 Consultation. During the DAF Form 813 process, the NHPA Section 106 consultation process is initiated if it is determined to be required at the initial assessment during the WRRP (See **Attachment 1**). At the Air Force Academy this consultation process includes the State Historic Preservation Officer (SHPO), National Park Service (NPS) (only for projects within the Cadet Area Nation Historic Landmark), Native American Tribes who claim affiliation with USAFA land, and potentially other project stakeholders determined by the Cultural Resource Manager (CRM). The CRM uses the information gleaned from design submissions to provide a project narrative to the SHPO, NPS, Native American Tribes, and other project stakeholders to inform the parties of the project details and the potential impacts to the natural and cultural resources on USAFA. Once comments from the stakeholders are addressed, the stakeholders provide written concurrence or non-concurrence on determination of effects. For the project to move forward, resolution of all adverse effects must be captured in a fully executed Programmatic Agreement or Memorandum of Agreement with the consulting parties thereby completing the Section 106 consultation process.

3.6. Air Force Civil Engineer Center (AFCEC)/Secretary of the Air Force (SAF) Gift Acceptance Process. Prepares valuations and analysis of acceptance factors for Assistant Secretary of the Air Force (Installations, Environment, and Energy) SAF/IE. The Secretary of the Air Force and SAF/IE are the only officials who may accept gifts of real property to the USAFA made conditional by the donor upon naming rights pursuant to 10 U.S.C. § 2601(e) and governed by Chapter 6 of AFI 51-506. Donations made to Non-appropriated Fund Instrumentalities (e.g., The Air Force Academy Athletic Corporation) for the specific purpose of constructing/modifying real property will also conform to the acceptance process outlined in AFMAN 34-201, *Use of Nonappropriated Funds*.

3.7. Donor Funded Real Property Gift-In-Kind Design Process. HQ USAFA/A4 provides policy and direction for privately funded capital projects and serves as funding liaison for private and third party funded projects. Design and construction management/oversight for private and third party funded projects shall be performed by 10 CES. The NFE PM is responsible for the execution and coordination of the technical reviews for all design reviews and submittals. The customer, 10 CES and other relevant stakeholders participate throughout the design review process, providing comments to the NFE PM and their design A&E for action. Review comments are discussed at the subsequent design review meetings.

3.8. Donor Cash That Fund Gifts of Real Property. Follows the same Federal, DoD and Air Force directives and guidance for programming, design, contracting and construction as appropriated funds real property projects. See DAFI 32-1020, *Planning and Programming Built Infrastructure Projects*, AFI 32-1023, *Designing and Constructing Military Construction Projects*, AFI 32-1001, *Civil Engineer Operations*.

Chapter 4

DONOR FUNDED REAL PROPERTY CONSTRUCTION PROCESS

4.1. 10ABW Pre-Construction Requirements. Once a project is accepted by SAF/IEI or SAF/IE the NFE PM manages the overall construction effort on-site. They, along with their contractor, hold a preconstruction meeting with the 10 CES, HQ USAFA/A4, relevant functionals and the MU representative. The construction schedule is reviewed, pre-construction permit requirements discussed, contractor access, and contractor secure storage are determined. The contractor's project manager (PM) for construction will need to submit an DAF Form 103, *Base Civil Engineer Work Clearance Request*, and supplemental acknowledgement form for any kind of ground disturbance to **10CES.CEOER.DigPermit@us.af.mil**. The contractor PM will contact 811 to conduct utility locates on the construction site to get 10 CES approval on the dig permit and permission to move forward with construction. The DAF Form 103 is re-accomplished every 30 days for the duration of construction.

4.2. Construction Progress, Reviews and Modifications. For the duration of the construction the NFE has complete management authority over the construction contractor and the project. The NFE's PM and their contractor will hold periodic construction progress meetings with 10 CES, USAFA/A4 and MU representatives. Weekly Meetings cover problem solving, decision making within authority, and should discuss, at a minimum, the following:

Table 4.1. Weekly Meeting Topics.

Table 1 – Weekly Meeting Topics

Current problems.
Status of modifications and change requests.
Quality assurance and quality control.
Schedules and progress.
FFE, sustainment, and real property transfer.
Other pending actions.
Funding status and issues.

4.2.1. Contract Modifications. The NFE PM negotiates contract modifications with the contractor and within the context of the original contract. Modifications are to accommodate differing site conditions, unforeseen conditions, changes in building codes and criteria, correction of errors and omissions (design deficiencies), additions, and deletions. When a contract modification is being contemplated NFE will ensure the 10 CES and HQ USAFA/A4 are brought into the discussion for their review and input. Modifications are paid for out of contingency funds. NFE is responsible for managing the contingency budget.

4.3. Project Completion and Punch Lists.

4.3.1. Preliminary Inspection. Once the construction is substantially complete NFE conducts a preliminary inspection with 10 CES and HQ USAFA/A4 personnel to identify deficiencies (i.e., punchlist items) and establish pre-final and final inspection dates.

4.3.2. Pre-final Inspection. The NFE PM and contractor conduct a detailed and thorough inspection to identify construction deficiencies (punchlist items) and remaining contractual items (such as systems operating manuals, spare parts lists, as-built drawings and training requirements). A copy of the punch list shall be provided to the 10 CES for review.

4.3.3. Final Inspection. The purpose of the Final Inspection is for the NFE to transfer the facility to 10 CES. The NFE PM will ensure all deficiencies on the punch list are corrected before conducting the Final Inspection. The NFE PM completes an interim DD Form 1354, *Transfer and Acceptance of DoD Real Property*, with support from 10 CES Real Property. If any deficiencies remain uncorrected on the date of the Final Inspection, they must be itemized on the interim DD Form 1354 along with their estimated correction date.

4.4. Project As-Builts and O&M Manuals. The NFE PM will ensure operating and maintenance (O&M) manuals, systems operating manuals, spare parts lists, and publications describing the equipment or materials, etc., are provided to 10 CES.

4.5. Project Turnover and Acceptance. Occurs when all punch-list items have been corrected by the contractor and the NFE PM accepts the work as complete. The final DD Form 1354 will be signed out by HQ USAFA/A4 and 10 CES.

4.6. Warranty Work. The construction contractor will warrant all workmanship, materials, and equipment for a period of one year from the date of substantial completion or beneficial occupancy, whichever occurs first. Also, there are specific manufacturer's warranties not required by specifications but available due to the Contractor's choice of materials allowed in submittals. When a customer identifies a problem within the first year after a donor project is complete, they must contact 10 CES/CEO first and submit a work task to 10 CES Customer Service.

Chapter 5

REAL PROPERTY GIFTS TO THE USAFA CONDITIONED UPON NAMING RIGHTS UNDER 10 U.S.C. § 2601(E)

5.1. A provision in the General Gift Statute. Allows the Secretary of the Air Force to accept gifts consisting of the provision, acquisition, enhancement or construction of real property from outside donors, even though the donor specifies (as a condition placed on the gift) that the real property bear a specific name (honoree) henceforth. The Secretary of the Air Force has delegated this authority to the SAF/IE, the Principal Deputy SAF/IE, via AFPD 51-5, paragraph 3.1.2.2. Neither delegee may further delegate this authority. Acceptance of a real property gift to the USAFA conditioned upon naming rights will follow the procedures laid out in AFI 51-506, Chapter 6.

5.2. SAF/IE may accept a real property gift for the benefit of USAFA subject to the following conditions:

5.2.1. The gift must be for the provision or construction of new real property (e.g., construction of a new facility) or significant improvement of existing Air Force real property located at the USAFA. The estimated total cost of the construction or improvement project associated with the offered gift must equal or exceed $5,000,000 to be considered for naming rights under this Chapter. The provision, construction, or improvement must result in complete and useable real property for naming rights to be granted. Examples of projects eligible for naming rights include:

5.2.1.1. Construction of a new complete and useable facility without requiring any supplemental funding from the United States.

5.2.1.2. Enhancements that are real property improvements to an existing complete and useable facility constructed with appropriated funds.

5.2.1.3. Enhancements that are real property improvements to an existing complete and useable facility constructed solely with non-appropriated funds.

5.2.2. The acceptance of the gift and the imposition of the naming rights condition must not reflect unfavorably upon the United States. At a minimum, SAF/IE shall consider the following factors prior to accepting gifts under the authority of this chapter:

5.2.2.1. Whether the honoree is worthy of the proposed naming rights at the USAFA. Considerations include, but are not limited to, whether the honoree, if an individual, corporation or educational institution, has a record of service in or to aviation, space, or cyber. In the case of an educational or athletic facility, whether the honoree has a record of service reasonably related to the intended purpose of the facility.

5.2.2.2. Whether the use of the property or money, or the performance of construction services, offered in connection with any program, project, or activity would result in the violation of any prohibition or limitation otherwise applicable to such program, project, or activity.

5.2.2.3. Whether the conditions attached to the property, money, or construction services offered are inconsistent or incompatible with applicable law or regulations.

5.2.2.4. Whether the use of the property or money or the performance of the construction services offered would reflect unfavorably upon or otherwise adversely impact the ability of the Department of Defense (DoD), the Air Force, the Space Force, or any DoD or Air Force member or employee, to carry out any official responsibility or duty in a fair and objective manner.

5.2.2.5. Whether the use of the property or money, or the performance of the construction services, offered would compromise, or appear to compromise, the integrity of any DoD program or individual.

5.2.2.6. Whether, after examination of any and all business affiliations or transactions with the Air Force, current, pending, or projected, in which the donor or honoree may have an interest, acceptance of the gift would reflect unfavorably upon the United States.

5.2.2.7. If the donor or honoree is a commercial entity, the naming of the real property after the honoree would create an unfavorable appearance of Air Force endorsement, advertising, or commercial sponsorship for the benefit of the honoree or the donor.

5.2.2.8. The estimated cost of annual maintenance to operate, sustain, and repair the proffered real property, and whether, as part of the gift offer, the donor has indicated a willingness or intent to commit to pay for all or a portion of such costs, and for what duration.

5.2.2.9. The value of the donation and type of real property that is proffered as a gift are additional factors to be considered by SAF/IE. A gift of real property conditioned on naming rights for the donor under 10 U.S.C. § 2601(e) should, in total value, exceed $5,000,000 to warrant, but not guarantee, consideration for acceptance. The Air Force shall neither encourage nor solicit increases in the gift amount or number of gifts from the donor as part of the discussions regarding the merits of the proffered gift.

5.2.3. The real property to be subject to the naming condition, or the subject portion thereof, cannot have already been named by an act of Congress or named pursuant to DAFI 36-2880, *Memorialization Program*.

5.2.4. The donor, and honoree (if the donor is not the honoree), must acknowledge, in writing:

5.2.4.1. Consent by the honoree, or by a designated representative of the honoree if the honoree consists of a group of individuals (e.g., the USAFA Class of 2002), to the proposed naming of the real property after the honoree, if the donor and honoree are not the same individual or entity and the honoree is not deceased or otherwise not legally incapacitated to provide knowing consent.

5.2.4.2. Acknowledgement of the right of the Air Force to remove or modify the honoree's name pursuant to a final and conclusive determination by the Secretary of the Air Force or SAF/IE that the donor or honoree has, either before or after acceptance of the gift by the Air Force, engaged in illegal, unethical, or inappropriate conduct, or in activities that reflect unfavorably on the United States.

5.2.4.3. Acknowledgement by the donor and honoree that future illegal, unethical, inappropriate, or other conduct or activities that reflect unfavorably on the United States could result in the removal of any previously granted naming rights.

5.2.4.4. Acknowledgement of the right of the Air Force to remove or modify the honoree's name, without assigning the honoree's name to another building or facility, pursuant to a determination by the Secretary of the Air Force or SAF/IE that a subsequent gift will significantly improve the named facility and warrants higher naming priority.

5.2.4.5. Acknowledgement of the right of the Air Force to remove or modify the honoree's name if the Air Force authority to accept gifts of real property conditioned on naming rights under 10 U.S.C.§ 2601(e) is subsequently rescinded or repealed by law.

5.2.5. Appropriate Naming Conventions. Proposed honoree names must not reflect unfavorably on the United States, Department of Defense, Space Force or the Air Force. Donors must specify the exact spelling of the proposed honoree name as part of the conditions of the gift offer. Slogans, mottos, quotes, or similar text are not considered appropriate naming conventions. SAF/IE approves the names to be displayed, and notification of decisions regarding final display approval will be provided to donors before a gift is officially accepted.

5.2.5.1. Persons. The full legal name of a person should normally be used. Derivatives or alternatives of given names, or use of initials alone, may be used if appropriate. Identification of persons may also include military rank or other applicable titles, to include professional, educational, or other honorifics. The Air Force may consider including nicknames or call signs that do not carry any derogatory or negative connotations. All such identifications must be of reasonable length, as determined by the Air Force.

5.2.5.2. Corporations, partnerships, businesses, military units, or similar organizations. The full legal name of such organizations should normally be used. If an organization does not have a legally registered name, the name by which is normally conducts its business or other activities should be used. Organizational designations, such as Inc., Corp., LLC, or P.C., may also be included.

5.2.5.3. Groups of persons, unofficial activities, and other honorees. Proposed names must be suitable to use to refer to real property and must therefore be of reasonable length and sufficiently appropriate for incorporation into USAFA operations.

5.2.6. Suitable naming display standards. The naming display must comply with Unified Facilities Criteria (UFC) 3-120-01 for standardization of sign material, color, style, and placement. (T-0). An electronic copy of UFC 3-120-01 can be found at the Whole Building Design Guide website (**http://www.wbdg.org/**).

5.2.6.1. Only alphanumeric characters may be used. (T-1). Commercial logos, trademarks, shields, crests, badges, or other photos, images, or graphics are not permitted. Images or symbols created via alphanumeric characters are also not permitted.

5.2.6.2. The staff at the USAFA shall consult and document, as appropriate, with the responsible State Historic Preservation Office to seek exclusion of such naming displays from constraints that otherwise would restrict modification of the naming of real property, including signage, as specified in this memorandum. This coordination may be accomplished through an overall Memorandum of Agreement with the responsible State Historic Preservation Office but at a minimum should be accomplished prior to acceptance of any gift.

5.2.7. Congressional Notification. If the value of a proposed real property gift is in excess of $5,000,000, SAF/IE will notify the congressional armed services committees prior to accepting the gift pursuant to 10 U.S.C. § 2662, as appropriate.

TONY D. BAUERNFEIND, Lt Gen, USAF
Superintendent

Attachment 1

GLOSSARY OF REFERENCES AND SUPPORTING INFORMATION

References

AFI 32-1001, *Civil Engineer Operations,* 26 Feb 2025

AFI 32-1023, *Designing and Constructing Military Construction Projects,* 22 Dec 2020

AFI 33-322, *Records Management and Information Governance Program*, 22 Mar 2020

DAFI32-1020, *Planning and Programming Built Infrastructure Projects,* 18 Dec 2019

DAFI 36-2880, *Memorialization Program*, 21 May 2023

AFI 51-506, *Gifts to the Department of the Air Force From Domestic and Foreign Sources,* 15 Apr 2019

AFMAN 34-201 *Use of Nonappropriated Funds,* 27 Sep 2018

DAFMAN90-161, *Publishing Processes and Procedures*, 17 Oct 2023

USAFAI 36-3102, *USAF Academy Gifts and Memorials Board,* 17 Jun 2008

USAFAI 51-601, *USAF Academy Management and use of Gift Funds,* 6 Jul 2020

AFPD 51-5, *Administrative Law, Gifts and Command Relationships,* 31 Aug 2018

10 USC 2601, *General Gift Funds*; *Air Force Policy Directive*

16 U.S.C. 470 et seq., *National Historic Preservation Act,* 1966 36 C.F.R. Part 800, *Protection of Historic Properties*

Adopted Forms

DAF Form 847, *Recommendation for Change of Product* DAF 103, *Base Civil Engineering Work Clearance Request*

AF 332, *Base Civil Engineer Work Request*

DAF 813, *Request for Environmental Impact Analysis*

DD1391, *FY_ Military Construction Project Data*

DD1354, *Transfer and Acceptance of DoD Real Property*

Abbreviations and Acronyms

AFAF—Air Force Academy Foundation

AFCEC-Air Force Civil Engineer Center

AFPD-Air Force Policy Directive

CATEX-Categorical Exclusion

CES—Civil Engineer Squadron

CoC—Certificate of Compliance

EIAP—Environmental Impact Analysis Process

FBWG-Facility Board Working Group

FONSI-Finding of No Significant Impact

IFB—Installation Facilities Board

MU—Mission Unit

NFE—Non-Federal Entity

NHPA—National Historic Preservation Act

NPS—National Park Service

WRRB—Work Request Review Board

WRRP-Work Request Review Panel

AFRC-Air Force Reserve Command

ANG-Air National Guard

OPR—Office of Primary Responsibility

SHPO-State Historic Preservation Office

USAFA—United States Air Force Academy

Terms

Real Property—Lands, buildings, structures, utilities systems, improvements, and appurtenances. Real property includes equipment attached to and made part of buildings and structures (e.g. heating systems); it does not include movable equipment.

Non-Federal Entity-Includes private citizens, corporations and non-profits such as the Air Force Academy Foundation and Air Force Academy Athletic Corporation.

Attachment 2

DONOR REAL PROPERTY FLOW CHART

Figure A2.1. Donor Real Property Flow Chart.

